

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christina Vuong	Team: Squad #16	CCRB Case #: 201405537	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 05/29/2014 1:30 AM	Location of Incident: v/o of Hylan Boulevard and Burgher Avenue, 122nd Precinct stationhouse	18 Mo. SOL 11/29/2015	Precinct: 122		
Date/Time CV Reported Thu, 05/29/2014 2:07 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/05/2014 6:14 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Francisco Allende	20385	944318	122 PCT
2. POM Nicholas Rentas	21556	937357	122 PCT
3. POM Mirel Hoxha	17705	941916	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT William Gavigan	02246	943286	122 PCT
2. POM David Figueroa	15626	936597	122 PCT
3. SGT Ikim Whitley	03103	929354	122 PCT
4. POM Victor Cruz	02268	915532	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Francisco Allende	Abuse: In the vicinity of Hylan Boulevard and Burgher Avenue in Staten Island, PO Francisco Allende stopped § 87(2)(b)	A . Substantiated
B . POM Francisco Allende	Force: At the 122nd Precinct stationhouse, PO Francisco Allende used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Francisco Allende	Discourtesy: At the 122nd Precinct stationhouse, PO Francisco Allende spoke rudely to § 87(2)(b)	C . Substantiated
D . POM Francisco Allende	Abuse: At the 122nd Precinct stationhouse, PO Francisco Allende strip searched § 87(2)(b)	D . Unsubstantiated
E . POM Nicholas Rentas	Abuse: At the 122nd Precinct stationhouse, PO Nicholas Rentas strip searched § 87(2)(b)	E . Unsubstantiated
F . POM Francisco Allende	Abuse: At the 122nd Precinct stationhouse, PO Francisco Allende conducted a cavity search of § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 29, 2014 at approximately 1:30 a.m., PO Francisco Allende and PO Mirel Hoxha of the 122nd Precinct interacted with § 87(2)(b) in the vicinity of Hylan Boulevard and Burgher Avenue in Staten Island. The investigation determined that PO Allende stopped § 87(2)(b) (**Allegation A**). Upon PO Allende's recovery of heroin during the interaction, § 87(2)(b) was arrested. Sgt. William Gavigan, along with PO Nicholas Rentas, of the 122nd Precinct soon arrived on scene to verify the arrest.

At the 122nd Precinct stationhouse, in front of the front desk, PO Allende brought § 87(2)(b) face-first down to the floor (**Allegation B**). § 87(2)(b) alleged that an officer he could not see, identified via investigation as PO Allende, punched and kicked him in his cheeks (within **Allegation B**). PO Allende also allegedly cursed at § 87(2)(b) (**Allegation C**).

§ 87(2)(b) alleged that when PO Allende removed his belt at the front desk, his pants fell down to his ankles, exposing his boxers. § 87(2)(b) alleged that in the prisoner holding pen area, while PO Rentas held him over a desk, PO Allende allegedly pulled down § 87(2)(b)'s boxers, prodded § 87(2)(b)'s buttocks, and partially inserted his finger into § 87(2)(b)'s anus (**Allegations D, E, and F**). PO Allende allegedly said to § 87(2)(b) "Shut the fuck up" (under **Allegation C**). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was transported via ambulance to § 87(2)(b) which he attributed to the fall. He was arrested for § 87(2)(b)

Mediation, Civil and Criminal Histories

- Because of § 87(2)(b)'s arrest, the nature of his injury, and the pending civil suit, the case was ineligible for mediation.
- On an unknown date, § 87(2)(b)'s civil attorney § 87(2)(b) filed a personal injury claim on his behalf, claiming \$1 million in damages for false arrest, facial injuries, and a cavity search (encl. D17-21). According to the New York City Law Department, as of April 3, 2015, no 50h hearing has been scheduled and the civil suit remains active.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) (encl. H2-41).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B4).
- PO Allende has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. B1). A prior physical force allegation was unsubstantiated.
- PO Hoxha has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. B2). § 87(2)(g).
- PO Rentas has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl. B3). He has one prior unrelated CCRB allegation, which was unsubstantiated.

Potential Issues

- § 87(2)(b) stated that no other prisoners were in the holding cell area at the time he was led inside (encl. D4-16). However, the 122nd Precinct Prisoner Holding Pen Roster on May 28, 2014 and May 29, 2014 revealed three such prisoners: § 87(2)(b) and § 87(2)(b) (name determined by the investigation to be § 87(2)(b) (encl. F34-35). § 87(2)(b) and § 87(2)(b) are friends, and all three prisoners are strangers to § 87(2)(b).
- Letters and emails sent to the addresses and email addresses yielded during a Lexis-Nexis database search for § 87(2)(b) received no response. None were returned to the CCRB as undeliverable. The search did not yield any connected phone numbers. In his phone statement, § 87(2)(b) stated that § 87(2)(b) confirmed to him receipt of the aforementioned email communication. A phone call to the number § 87(2)(b) provided for § 87(2)(b) was answered by an unidentified man who picked up the phone, stated that it was the wrong number and hung up.
- Please call letters were mailed to the addresses listed on § 87(2)(b)'s two 2014 arrest reports. No response was received and no letter has been returned to the CCRB as undeliverable. Calls were placed to the home phone number listed on one arrest report, and to the phone number of a woman he contacted, but both were phone numbers to unrelated commercial businesses. A search of the New York City Department of Correction database on April 6, 2015 showed that § 87(2)(b) and § 87(2)(b) are not presently incarcerated.
- The TARU list was negative for any cameras in the vicinity of the incident location (encl. G1-2).
- § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Civilian Statements

Complainant/Victim: § 87(2)(b) (encl. D4-16, F61-63)

- § 87(2)(b) acknowledged using a small quantity of heroin and cocaine more than 12 hours prior to the incident. He concealed one glassine envelope of heroin in the change pocket of his right front pants pocket.
- § 87(2)(b) denied looking into any store windows and said that his only activities along Hylan Boulevard were to purchase ice cream (stored in a plastic grocery bag) from the CVS Pharmacy at Dumont Boulevard and Hylan Boulevard, obtain a spoon from the BP gas station on the southeast corner of Hylan Boulevard and Reid Avenue, and cross the street to urinate behind a dumpster at the rear of Perkins Family Restaurant on the northwest corner of Hylan Boulevard and Reid Avenue. He stated that he was stopped within a block of this location, while waiting at the bus stop. [However, his arrest worksheet noted he was arrested at Burgher Avenue, five blocks away.]
- § 87(2)(b) denied any bulges to his clothing, and he carried the plastic grocery bag in one hand.
- PO Allende did not activate any lights or sirens when he pulled up next to § 87(2)(b). § 87(2)(b) stated that there were four plainclothes officers in the unmarked car. [The investigation determined that there were only two officers, PO Allende and PO Hoxha, inside.]
- § 87(2)(b) denied having his fists clenched when interacting with the officers. He stated that at the time of the stop, he had already removed his tub of ice cream from the plastic bag and was eating it. § 87(2)(b) did not recall if any officer asked him to show or open his hands.
- From inside the RMP, PO Allende asked § 87(2)(b) what he was doing, what he did behind the dumpster, why he went to the gas station, and noted that it was suspicious he had crossed the street. § 87(2)(b) explained that he was waiting for the bus, that he urinated behind the dumpster, and went to the gas station to get a spoon. No officer responded to his answers or his admission of the violation. PO Allende then exited the car, instructed § 87(2)(b) to put his hands up and handcuffed him, after which he searched § 87(2)(b)'s pockets and recovered the heroin.

- While PO Allende searched § 87(2)(b) in front of the chin-high front desk at the 122nd Precinct stationhouse, on top of which was the heroin envelope four inches away from the edge, § 87(2)(b) bent his head forward, intending to scratch his forehead on the desk. § 87(2)(b)'s mouth was open.
- Before § 87(2)(b) made any contact with the desk, PO Allende asked § 87(2)(b) what he was doing, grabbed § 87(2)(b) by the handcuffs, pulled him backwards, then pushed him on the back, causing § 87(2)(b) to fall nose-first onto the floor. § 87(2)(b) felt the bottom of a shoe kick his left side cheek and then felt a punch to his right cheekbone. § 87(2)(b) was facing the floor and did not see which officer or officers kicked or punched him.
- PO Allende lifted § 87(2)(b) up and said, “Get the fuck up, are you crazy?”
- § 87(2)(b)'s belt was removed at the front desk, causing his pants to drop and exposing his boxers. [In his CCRB statement, § 87(2)(b) stated that his boxers also fell down, exposing his genitals. However, in a prior letter to the CCRB and in his statement to IAB, § 87(2)(b) stated that his boxers were pulled down in the prisoner holding pen area.]
- § 87(2)(b) stated that three plainclothes officers led him to the cell area. § 87(2)(b) did not hear any conversation between the officers and Sgt. Gavigan or Sgt. Whitley before being led to the cells. [The investigation determined that it was only PO Allende and PO Rentas who brought § 87(2)(b) to the cells.] While walking, PO Allende told him that he knew § 87(2)(b) had more drugs, and told him to “shut the fuck up” when § 87(2)(b) claimed that he only had one glassine envelope.
- § 87(2)(b) stated that while PO Rentas and an unidentified plainclothes officer held him down over a desk in the cell area, with PO Cruz watching from the doorway, PO Allende pulled down § 87(2)(b)'s boxers, poked at and spread his buttocks, then inserted a gloved finger partially into § 87(2)(b)'s anus. [To IAB, § 87(2)(b) described only the tip of the finger as being inserted. To the CCRB, § 87(2)(b) described the insertion of half of the finger.] When § 87(2)(b) used profanity in protest of the cavity search, PO Allende said to him, “Shut the fuck up, welcome to Staten Island.” [The investigation determined that there was no third plainclothes officer in the cell area.]

Witness: § 87(2)(b) (encl. D23)

- Following the provision of his phone statement on February 9, 2015, § 87(2)(b) stated that he was willing to be interviewed in-person by the CCRB field team, but he did not respond to multiple contact attempts to schedule a time and date.
- § 87(2)(b) saw the two plainclothes officers, PO Allende and PO Rentas bring § 87(2)(b) into the holding cell area in front of a desk, while PO Cruz stood behind them. Although only seven feet away, their backs were to § 87(2)(b) and so his ability to see what was happening was obscured. § 87(2)(b) did not see § 87(2)(b)'s genitals exposed, but believed that § 87(2)(b)'s pants were down, exposing his underwear, as he was walked in.
- § 87(2)(b) volunteered that he heard § 87(2)(b) complain about, but did not see, a rectal search.
- § 87(2)(b) volunteered that PO Allende and PO Rentas were both cursing and “being vulgar” at § 87(2)(b) and calling him crazy, but he did not recall their exact statements. However, when specifically asked by the undersigned, he stated that he heard both officers say several times, “Shut the fuck up,” among other phrases, to § 87(2)(b).

Officer Statements

Subject Officer: PO FRANCISCO ALLENDE (encl. E18-21)

- In his memo book entry, PO Allende noted that at 1:30 a.m., he stopped § 87(2)(b) for “burglary looking into windows” (encl. E1-3).

- PO Allende and PO Hoxha were alone in the RMP and driving south on Hylan Boulevard when he observed, from a distance of 20 yards, § 87(2)(b) walking past a strip of closed stores near Reid Avenue. § 87(2)(b) peered into a store window for several seconds at each business along the strip. PO Allende's observations lasted a few minutes. PO Allende did not see § 87(2)(b) make physical contact with the store windows or any entrances. PO Allende suspected § 87(2)(b) of casing.
- PO Allende did not see § 87(2)(b) cross the street or go behind a dumpster.
- PO Allende could not recall any bulges to § 87(2)(b)'s clothing or if he had any objects in hand.
- PO Allende stated that robberies and burglaries at that time of night along Hylan Boulevard in the vicinity of Burgher and Reid Avenues were an ongoing issue. However, he did not specifically recall any recent reports of such crimes or any perpetrator descriptions.
- After peering into the series of store windows, § 87(2)(b) continued walking down another block. The second block was empty of stores, and PO Allende did not see § 87(2)(b) do anything notable.
- PO Allende activated the RMP's lights, pulled over next to § 87(2)(b) and said, "Don't move." At the time of the stop, PO Allende was unsure if § 87(2)(b) was preparing to commit a crime.
- § 87(2)(b) denied that he was doing anything. PO Allende informed § 87(2)(b) that he saw § 87(2)(b) looking into windows. However, PO Allende could not pursue the issue further because he saw § 87(2)(b)'s right hand was at his side and clenched in a fist. They stood three to four feet apart. § 87(2)(b) did not make any movements towards PO Allende. PO Allende made no observations of § 87(2)(b)'s other hand.
- PO Allende feared that § 87(2)(b) might punch him, and was unsure if § 87(2)(b) was concealing something inside his hand, but PO Allende did not specifically suspect § 87(2)(b) of carrying a weapon. PO Allende did not recall § 87(2)(b)'s demeanor during the stop.
- PO Allende instructed § 87(2)(b) two or three times to open his hand, and § 87(2)(b) verbally refused each time. Because he felt his safety was compromised, PO Allende requested § 87(2)(b) to step to the back of the RMP, where PO Allende felt that § 87(2)(b) would be better isolated as opposed to an open sidewalk. § 87(2)(b) complied.
- At the rear of the RMP, PO Allende touched § 87(2)(b)'s right wrist and instructed him again to open his hand. § 87(2)(b) opened his hand, exposing a glassine bag with what PO Allende recognized from his experience to be heroin. § 87(2)(b) then attempted to unsuccessfully stuff the bag into the RMP trunk crevice. PO Allende proceeded to handcuff § 87(2)(b) without difficulty.
- PO Allende recovered two glassine envelopes of heroin in § 87(2)(b)'s right pants pocket.
- In front of the front desk at the stationhouse, PO Allende placed the heroin on the counter in front of § 87(2)(b) who was rear-cuffed. § 87(2)(b) bent forward with his mouth open. He refused instructions to stop, and licked one of the envelopes. PO Allende grabbed § 87(2)(b)'s right arm, pulling him backwards. § 87(2)(b) jerked his body forwards. In the process, both PO Allende and § 87(2)(b) fell, with § 87(2)(b) landing face-forward and PO Allende landing on his side.
- PO Rentas came over to assist PO Allende in lifting § 87(2)(b) up by his arms. PO Allende denied personally doing so or seeing PO Rentas punch or kick § 87(2)(b).
- PO Allende removed § 87(2)(b)'s belt at the desk but did not recall his pants to drop, or his privates to be exposed.
- PO Allende and PO Rentas escorted § 87(2)(b) to and lodged him in the cells without incident. He did not mention any additional searches. PO Allende denied that § 87(2)(b) was bent over the desk. He denied seeing any officer touch § 87(2)(b)'s buttocks or insert a finger up § 87(2)(b)'s anus, and denied personally doing so.
- PO Allende denied making or hearing any officer make discourteous statements.

- PO Allende stated he did not suspect § 87(2)(b) of concealing additional drugs on his person nor did he notice any suggestive behaviors. There was no discussion with a supervisor about a strip search or with § 87(2)(b) about whether he had drugs on his person.

Subject Officer: PO MIREL HOXHA (encl. E35-37)

- PO Hoxha had no memo book entries relevant to this incident. He noted § 87(2)(b)'s arrest at 1:22 a.m. and his end of tour at 2:05 a.m. (encl. E33-34).
- PO Hoxha corroborated the commercial burglary conditions of the areas. He was unaware of any perpetrator descriptions.
- PO Allende informed PO Hoxha that § 87(2)(b) was looking through store windows. No additional details were provided. When PO Hoxha looked up, he only saw § 87(2)(b) walking.
- PO Hoxha did not recall § 87(2)(b)'s clothing, or if he had any items in his hands.
- PO Hoxha corroborated the brief exchange between PO Allende and § 87(2)(b). Only after PO Allende asked § 87(2)(b) to open his hand did PO Hoxha notice that § 87(2)(b)'s right hand was clenched in a fist at his side, and moving it as if to shield it from view. PO Hoxha corroborated § 87(2)(b)'s actions after he stepped to the back of the RMP.
- PO Hoxha, upon arriving at the stationhouse, immediately went downstairs to do paperwork. He did not witness any events by the front desk or in the cell area.

Subject Officer: PO NICHOLAS RENTAS (encl. E31-32)

- PO Rentas observed that as PO Allende walked § 87(2)(b) to the stationhouse front desk, § 87(2)(b) was twitching and shimmying his legs, which suggested to PO Rentas that § 87(2)(b) was shifting drugs around. However, PO Rentas did not verbalize these observations or hear another officer do so. He did not see § 87(2)(b) make these movements at any other point.
- PO Rentas corroborated § 87(2)(b)'s attempt to swallow the drugs, and that he fell forward after pulling away from PO Allende. PO Rentas stated that he only lifted § 87(2)(b) by his arms off of the floor. He denied personally punching or kicking § 87(2)(b) or seeing PO Allende do so.
- PO Rentas denied hearing any officer make discourteous statements to § 87(2)(b).
- PO Rentas denied any discussion with other officers or with § 87(2)(b) about whether § 87(2)(b) had additional drugs on his person.
- After lifting § 87(2)(b) up, PO Rentas and PO Allende led § 87(2)(b) to the holding pen area. PO Rentas stated that the officers conducted only a routine search of § 87(2)(b) before placing him into the cells, which entailed searching his jacket and pockets for contraband. § 87(2)(b)'s belt was removed, but PO Rentas did not recall at what point. He did not recall if § 87(2)(b)'s pants ever dropped down. He did not recall if § 87(2)(b) was bent over a desk. He did not see § 87(2)(b)'s privates ever exposed, and denied seeing any officer touch his buttocks or insert a finger into his anus.

Witness Officers: SGT. WILLIAM GAVIGAN, SGT. IKIM WHITLEY, PO VICTOR CRUZ (encl. E25-27, E38-39, E42-43)

- The Tour 1 Roll Call on May 29, 2014 showed that Sgt. Ikim Whitley was the assigned desk officer and PO Victor Cruz was the assigned cell attendant at the time of the incident (encl. F18-25).
- Sgt. Gavigan, who was seated across from § 87(2)(b) at the front desk, corroborated that § 87(2)(b) attempted to swallow the heroin and that § 87(2)(b) fell forward after pulling away from PO Allende. He did not witness any additional force used against § 87(2)(b) and did not hear any officer use profanity. There was no discussion at the stationhouse whether § 87(2)(b) was concealing additional drugs on his person. Sgt. Gavigan remained at the front desk after PO

Allende and PO Rentas led § 87(2)(b) to the cells. He denied authorizing a strip search of § 87(2)(b) and he could not see nor was he aware of any additional events in the prisoner holding pen.

- Sgt. Whitley stated that after § 87(2)(b) was brought to the front desk, because Sgt. Gavigan was present and could prepare the arrest entry, Sgt. Whitley left the desk to inspect the stationhouse. Several minutes later, when he was 75 feet away, Sgt. Whitley heard a loud commotion of some kind and a voice he could not discern say, “What the fuck.” When Sgt. Whitley returned to the front desk, § 87(2)(b) was face-down on the floor, with PO Allende and PO Rentas holding onto § 87(2)(b)’s arms. He did not see any officers punch or kick § 87(2)(b). He did not hear any officer curse at § 87(2)(b). Sgt. Gavigan informed Sgt. Whitley that § 87(2)(b) attempted to swallow drugs. No additional details about the situation or § 87(2)(b)’s arrest were communicated to Sgt. Whitley. He denied authorizing a strip search of § 87(2)(b) or any knowledge of a strip search being conducted. He denied knowledge of any cavity search being performed. .
- PO Cruz did not recognize § 87(2)(b)’s arrest photo to be a prisoner he ever saw during his tour on the date of the incident, and denied witnessing any officer use physical force or profanity towards, or conduct a strip search or cavity search of any prisoner.

Police Documents

- § 87(2)(b) was arrested by PO Allende for § 87(2)(b) (encl. E6-8). PO Allende vouchered three glassine envelopes of alleged heroin from § 87(2)(b) (encl. E17). PO Allende prepared the controlled substance supporting deposition regarding this incident, which was entirely consistent with his CCRB statement concerning § 87(2)(b)’s casing behavior, refusal to open his hand, and attempt to hide the heroin in the RMP (encl. E9-13). PO Allende noted in the arrest narrative that § 87(2)(b) attempted to swallow one of the envelopes while being searched at the stationhouse. No strip search is noted in the arrest report.
- No Stop, Question, and Frisk report was generated in regards to this incident (encl. I610).
- § 87(2)(b)’s arrest entry, which was entered by Sgt. Gavigan, in the Tour 1 Command Log on May 29, 2014 showed his physical and mental condition as apparently normal, but noted him sustaining a facial injury while in police custody (encl. F13-17). No strip search is noted.
- The prisoner holding pen rosters on May 28, 2014 and May 29, 2014 showed that § 87(2)(b) and § 87(2)(b) were lodged in the cells at the time of the incident (encl. F34-35).
- Lt. Kevin Byrnes of the 122nd Precinct, the Tour 1 Platoon Commander, completed an Unusual Occurrence Report regarding the incident, noting that § 87(2)(b) was being processed for an arrest at the front desk when he attempted to eat the recovered heroin (encl. F32). He noted that PO Allende and PO Rentas attempted to prevent § 87(2)(b) from destroying the evidence, when an unspecified struggle ensued, leading § 87(2)(b) to fall to the floor and break his nose.
- § 87(2)(b)’s arrest photo shows dried blood from a laceration on the top of his nose (encl. D22).
- § 87(2)(b)’s Medical Treatment of Prisoner form noted a small laceration to the top of his nose and a contusion to his lip (encl. F33).
- In response to a request for the robbery and burglary patterns within the 122nd Precinct around the time of the incident, the 122nd Precinct Detective Squad returned the investigative actions pertaining to Burglary Pattern #11-2014, which detailed the investigations of three burglaries in April 2014 and one in June 2014 that took place two to three miles from the incident location (encl. F37-42). The burglaries occurred at both residential and commercial locations, and involved the stripping of metal parts. There were no witnesses to the crimes, and no perpetrator description is given.
- On May 29, 2014, IAB Group 9 conducted a call-out regarding an injured prisoner, under Log #2014-18292, and interviewed § 87(2)(b) after which the case was referred to the Office of the Chief of

Department Investigative Review Section on June 23, 2014 (encl. F53-77). No officers were interviewed in regards. The call-out was received by the CCRB on September 11, 2014.

- § 87(2)(b) consistently alleged that PO Allende pulled down his underwear, bent him over a table, spread his butt cheeks, and inserted the tip of his finger into his rectum. He did not allege any additional force in front of the desk apart from being taken down to the floor. § 87(2)(b) did not allege any use of profanity. He provided no statements regarding the events leading up to his arrest.
- A request for the IAB case file pertaining to Log #2014-10570, regarding the alleged inappropriate touching and cavity search, was submitted on November 21, 2014, but the case remains under active investigation and the file contents have yet to be received (encl. I51-53).

Medical Records

- § 87(2)(a) PHL § 18(6) [REDACTED]
- [REDACTED]
- [REDACTED]

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

§ 87(2)(g)

Identification of Subject Officers

- PO Allende acknowledged initiating the stop of § 87(2)(b) restraining him at the front desk, and escorting him to the prisoner holding pen. § 87(2)(g)
- § 87(2)(b) alleged that while PO Rentas and an unidentified third plainclothes officer held him down over the desk in the prisoner holding pen area, PO Allende pulled down his boxers and conducted a cavity search. PO Allende and PO Rentas stated that it was only the two of them who engaged with § 87(2)(b) inside the cell area. Since § 87(2)(b) corroborated the officers' statement about them being the only two plainclothes officers in the cell area, § 87(2)(g) Because PO Rentas acknowledged leading § 87(2)(b) to the cells with PO Allende, and that the two officers conducted an additional search of § 87(2)(b) in the cell area, § 87(2)(g)

Recommendations:

Allegation A- Abuse of Authority: In the vicinity of Hylan Boulevard and Burgher Avenue in Staten Island, PO Francisco Allende stopped § 87(2)(b)

§ 87(2)(b) denied that PO Allende activated any RMP lights or sirens, and stated that PO Allende questioned him briefly before placing him into handcuffs. Because PO Allende stated that he activated his police lights and told § 87(2)(b) "Don't move," the investigation determined that PO Allende stopped § 87(2)(b)

§ 87(2)(b) stated that, prior to the stop, he purchased ice cream, went to the gas station across the street, and urinated behind a dumpster of a restaurant, after which he stood at a bus stop around the corner eating his ice cream. He denied looking into any store windows.

§ 87(2)(g)

According to PO Allende, for a few minutes, he observed § 87(2)(b) peer for several seconds into each store window of a strip of closed stores. § 87(2)(b) made no physical contact with the store windows or entrances. § 87(2)(b)'s behavior, the time of night, and general burglary conditions led PO Allende to suspect § 87(2)(b) of casing. PO Allende could not describe recent reports of burglaries or any perpetrator descriptions. PO Hoxha was informed of, but did not see, PO Allende's observation of § 87(2)(b) looking into windows. PO Allende and PO Hoxha did not recall any items in § 87(2)(b)'s hands or any shapes to his person. The officers suspected him of no other crime except casing. The officers consistently stated that when PO Allende stopped him a block after noting the behavior, § 87(2)(b) was not engaged in any activity except walking. PO Allende stated that he was unsure if at the time of the stop, he believed § 87(2)(b) to be prepared to commit a crime.

The only burglary pattern received by the CCRB detailed residential and commercial burglaries of metal parts at unknown times that occurred two to three miles away from the incident location.

An officer may stop an individual when he reasonably suspects that the individual is committing, has committed, or is about to commit a crime. *People v. DeBour*, 40 N.Y.2d 210 (1976) (encl.A1-11). An officer is justified in initiating a common-law inquiry when he observes an individual engage in casing

behavior then abruptly change direction. People v. Solomon, 6 A.D.3d 335 (1st Dept., 2004) (encl. A12-13). Casing behavior, including looking into store windows, in the absence of additional suspicious factors, does not provide reasonable suspicion of a crime. People v. Roberts, 94 A.D.2d 237 (1983) (encl. A14-19). Without any indication that a crime has actually occurred or was about to take place, a stop of a person believed to be casing a location is not justified. People v. Farrell, 90 A.D.2d 396 (1st Dept., 1982) (encl. A20-24).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation A be **substantiated**.

Allegation B—Force: At the 122nd Precinct stationhouse, PO Francisco Allende used physical force against § 87(2)(b)

It is undisputed that while rear-cuffed in front of the front desk, § 87(2)(b) made a movement as if to swallow the glassine envelope of heroin from the counter, and that PO Allende pulled him backwards. It is undisputed that § 87(2)(b) sustained a fractured nose as a result of his face contacting the floor.

§ 87(2)(b) alleged that after pulling him backwards, PO Allende pushed him on his back and let go, causing § 87(2)(b) to fall face-first into the floor. While on the floor, § 87(2)(b) felt a punch to his right cheek and a kick to his left cheek. § 87(2)(b)

PO Allende, PO Rentas, and Sgt. Gavigan consistently stated that § 87(2)(b) jerked his body forward before falling, taking PO Allende down with him. PO Allende denied punching or kicking § 87(2)(b) and PO Rentas, Sgt. Gavigan, and Sgt. Whitley denied witnessing these allegations.

§ 87(2)(b) s arrest photo only shows a cut to his nose. § 87(2)(a) PHL § 18(6), § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation B be **unsubstantiated**.

Allegation C- Discourtesy: At the 122nd Precinct stationhouse, PO Francisco Allende spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that when PO Allende lifted him up from the floor, PO Allende said, “Get the fuck up. What are you, crazy?” He alleged that while leading him to the cell area and following the alleged cavity search in the cell area, PO Allende told him to “shut the fuck up.” § 87(2)(b) acknowledged using profanity towards the officers, but only while in the cell area.

§ 87(2)(b) stated that no other prisoners were in the holding cell area at the time this occurred. However, § 87(2)(b) another prisoner who was identified from the holding pen roster obtained by the investigation as a witness. § 87(2)(b) stated that he heard PO Allende say, “Shut the fuck up,” to § 87(2)(b) in the cell area, and said that the plainclothes officers accused § 87(2)(b) of being crazy.

PO Allende denied making the alleged statements. PO Rentas and Sgt. Gavigan did not hear any officer make any statements to that effect. During the commotion at the front desk, Sgt. Whitley heard a voice he could not discern say, “What the fuck.”

§ 87(2)(g)

Patrol Guide Procedure 203-09 states that officers are to be courteous and respectful when dealing with the public (encl. A25).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation C be **substantiated**.

Allegation D- Abuse of Authority: At the 122nd Precinct stationhouse, PO Francisco Allende strip searched § 87(2)(b)

Allegation E- Abuse of Authority: At the 122nd Precinct stationhouse, PO Nicholas Rentas strip searched § 87(2)(b)

Allegation F- Abuse of Authority: At the 122nd Precinct stationhouse, PO Francisco Allende conducted a cavity search of § 87(2)(b)

PO Allende and § 87(2)(b) both stated that § 87(2)(b)'s belt was removed at the front desk. PO Allende and PO Rentas did not recall § 87(2)(b)'s pants dropping after the belt was removed as § 87(2)(b) alleged, but § 87(2)(b) believed that § 87(2)(b)'s pants were down when he was led into the cell area. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) consistently alleged to IAB and CCRB that after PO Rentas leaned him over a desk in the holding cell area, PO Allende pulled down his boxers and touched his exposed buttocks before partially inserting a finger into his anus. § 87(2)(b) stated that this happened immediately after being brought into the cell area, and he did not mention any other searches taking place after he was already searched at the desk. § 87(2)(b) whose view was obscured by the officers' bodies, saw § 87(2)(b) stand in front of a desk and heard § 87(2)(b) complain of a rectal search, but § 87(2)(b) did not personally witness this or any exposure of § 87(2)(b)'s privates.

Although PO Rentas referenced § 87(2)(b) twitching and shimmying while being led to the front desk, he did not verbalize these observations to any officer and no other officer interviewed noted any such behaviors from § 87(2)(b). PO Allende stated that he never suspected § 87(2)(b) of harboring additional drugs on his person. Both officers, along with Sgt. Gavigan, denied any discussion of a strip search or the possibility of § 87(2)(b) having additional drugs on his person. PO Allende did not mention that any additional searches took place in the holding cell area before lodging § 87(2)(b) and stated that the transfer occurred without incident. PO Rentas stated that he and PO Allende only conducted a routine search of § 87(2)(b)'s jacket and pockets in the cell area. PO Allende and PO Rentas denied that § 87(2)(b) was bent over the desk or his privates ever exposed, and denied touching § 87(2)(b)'s buttocks or inserting a finger up § 87(2)(b)'s anus. By acknowledging his participation in the routine search, the investigation determined that PO Rentas made physical contact with § 87(2)(b)'s person in the cell area.

§ 87(2)(b)'s arrest paperwork and his arrest entry in the Command Log do not support that a strip search was authorized or conducted.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g) Therefore, it is recommended that Allegations D, E, and F be **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

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Team:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date